

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

DASUAN CARTER

Plaintiff(s),

*-against-*THE CITY OF NEW YORK; NYPD OFFICER FIRST
NAME UNKNOWN ("FNU") GOMEZ; NYPD OFFICER
FNU SULLIVAN

Defendant(s).

Index No.

Summons

Date Index No. Purchased: December 2, 2022

To the above named Defendant(s)

THE CITY OF NEW YORK; NYPD OFFICER FIRST NAME UNKNOWN ("FNU") GOMEZ; NYPD OFFICER
FNU SULLIVAN

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is a substantial part of the events & omissions giving rise to the claims took place in Bronx, which is , because the incident took place in this county, proper under CPLR 503(a).

Dated: Ridgewood (Queens), NY

December 2, 2022

Cohen&Green P.L.L.C.

by /s/ Remy Green

Remy Green

Attorneys for Plaintiff

COHEN&GREEN P.L.L.C.

1639 Centre St., Suite 216

Ridgewood, New York 11385

t: (929) 888-9480

f: (929) 888-9457

e: remy@femmelaw.com

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
DASUAN CARTER,

Index No.

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK; NYPD OFFICER FIRST NAME
UNKNOWN ("FNU") GOMEZ; NYPD OFFICER FNU
SULLIVAN

**PLAINTIFF DEMANDS
A TRIAL BY JURY**

Defendants.

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Plaintiff DASUAN CARTER, by his attorneys, COHEN&GREEN P.L.L.C., hereby
complains of Defendants as follows:

PARTIES, VENUE AND JURISDICTION

1. At all times mentioned herein, Plaintiff DASUAN CARTER (Mr. Carter, he/him)
was a resident of Bronx County in the City and State of New York.

2. At all relevant times mentioned herein, Defendant City of New York ("New York
City") was and is a municipal corporation duly organized and existing under and by virtue of the
laws of the State of New York and acts by and through its agencies, employees and agents,
including, but not limited to, the New York City Police Department ("NYPD"), and their
employees.

3. Defendants NYPD officers FNU Gomez and FNU Sullivan were men and officers
with the NYPD. FNU Gomez appeared to be a Hispanic man, and he was wearing an NYPD
uniform with a blue shirt. FNU Sullivan appeared to be a white man, and he was wearing an NYPD
uniform with a blue shirt.

4. The individual Defendants are NYPD members who unlawfully used excessive force, in violation of his constitutional rights.

5. At all times hereinafter mentioned, the Defendants were employed by the City of New York as members of the NYPD.

6. At all times hereinafter mentioned, Defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

7. Each and all of the acts and omissions of the Defendants alleged herein occurred while said Defendants were acting within the scope of their employment by the Defendant City.

8. Defendants were duly appointed and acting officers, servants, employees, and agents of Defendant City who were acting for, and on behalf of, and with the power and authority vested in them by Defendant City, and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

9. At all times relevant herein, as set forth more fully below, Defendants' actions and/or failures to act were malicious, intentional, knowing, and/or with a deliberate indifference to or a reckless regard for the natural and probable consequences of their acts and/or omissions.

10. Although they were aware of the conduct, present for it, and knew or should have known it was unconstitutional, at no time did any of the Defendants, or any other member of the NYPD, take any steps to intervene in, prevent, or otherwise limit the unconstitutional conduct engaged in by their fellow officers.

11. Each individual Defendant is sued in her or his individual and official capacities.

12. Venue is proper in the County of the Bronx, where the Plaintiff and Defendant City of New York reside, and where the actions complained of herein occurred at least in part.

13. Plaintiff has initiated this action within one year and ninety days of the accrual of Plaintiff's claims.

14. Plaintiff filed a notice of claim along with an order to show cause deeming his notice of claim timely filed, within one year and ninety days of this incident.

STATEMENT OF FACTS

15. In the time leading up to about 3:30 p.m. on September 3, 2021, Plaintiff was at his home on Webster Avenue in the Bronx.

16. At the time of the incident, Plaintiff had an active family court order of protection (the "OP") against CW.¹

17. Plaintiff and CW have a minor child together ("MC", for "minor child").

18. Under the OP, CW was not supposed to personally drop off MC personally at Plaintiff's home when relevant.

19. Rather, at times Plaintiff was supposed to be caring for MC, MC was supposed to be brought to the home by a third party.

20. On September 3, 2021, CW violated the OP by personally bringing MC to Plaintiff's Bronx home.

21. Further violating the OP, CW entered Plaintiff's home and began screaming at him.

22. CW also refused to leave.

¹ CW's name is replaced with initials in the interest of her privacy. However, the initials in the notice of claim contained a typo, and this complaint uses the same initials for consistency.

23. As instructed by the family court and as contemplated by the OP, Plaintiff called the police to enforce the OP.

24. Police Officer-Defendants Gomez and Sullivan responded to that call.

25. Defendants Gomez and Sullivan at some point in time, upon information and belief, became aware that there was a warrant for Plaintiff's arrest.

26. When they arrived to respond to Plaintiff's call, instead of addressing the OP violation in any way, they immediately arrested Plaintiff.

27. As part of arresting Plaintiff, Defendants used excessive force.

28. Defendants applied extraordinarily tight metal handcuffs to Plaintiff.

29. Plaintiff stated and repeatedly complained that the handcuffs were overtight and causing pain.

30. But — in violation of written NYPD policy — Defendants refused to adjust the handcuffs.

31. The tight handcuffs cut Plaintiff's skin.

32. Plaintiff was visibly bleeding and his wrists were visibly swollen.

33. Defendants falsely denied that Plaintiff's wrists were swelling and bleeding, among other reasons and upon information and belief, so that they could avoid their obligation to provide medical treatment.

34. Defendants never enforced the OP, and never took any action with regard to CW.

35. NYPD members used unreasonable and excessive physical force in detaining and arresting Claimant.

36. As to the handcuffs, NYPD members applied metal handcuffs to Plaintiff's wrists with extreme tightness.

37. As noted above, Plaintiff complained about the excessive tightness of the handcuffs, but the members of the NYPD to whom Plaintiff complained did not take any steps to alleviate the excessive tightness of the handcuffs until after Plaintiff was forced to endure the excessively tight handcuffs for an extended period of time.

38. Plaintiff still has a scar on his wrist and still lacks feeling in his wrist because of the damage caused by the handcuffs.

FIRST CLAIM FOR RELIEF

Excessive Force

Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Under the Fourth and Fourteenth Amendments to the United States Constitution

39. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

40. Defendants' use of force against Plaintiff was unjustified and objectively unreasonable, taking into consideration the facts and circumstances that confronted Defendants.

41. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of their federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

42. Defendants' unlawful conduct was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

SECOND CLAIM FOR RELIEF

Deprivation of Fair Trial Rights

Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Protected Under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution

43. Plaintiff incorporates by reference the allegations set forth in all preceding and subsequent paragraphs as if fully set forth herein.

44. Defendants fabricated evidence of a material nature, likely to influence a jury's decision, intentionally forwarded that evidence to prosecutors, as a result of which Plaintiff suffered liberty deprivations and other injuries.

45. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of their federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiffs to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

46. Defendants' unlawful conduct was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

THIRD CLAIM FOR RELIEF

Violations of New York State Law *Pursuant to the New York State Constitution and New York State Law*

47. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

Respondeat Superior Liability

48. The conduct of the police officials alleged herein occurred while they were on duty and/or in and during the course and scope of their duties and functions as police officials, and/or while they were acting as agents and employees of Defendant City, clothed with and/or invoking state power and/or authority, and, as a result, Defendant City is liable to the Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

Assault

49. Defendants committed assault within the meaning of New York common law against Plaintiff by intentionally placing Plaintiff in fear of imminent harmful or offensive contact.

Battery

50. Defendants committed battery within the meaning of New York common law against Plaintiff by intentionally physically contacting Plaintiff without Plaintiff's consent.

Excessive Force

51. Defendants deliberately engaged in the excessive use of force against Plaintiff, causing them pain and suffering.

Violations of the New York State Constitution

52. Defendants, acting under color of law, violated Plaintiff's rights pursuant to Article I, §§ 6, 8, 9, 11, and 12 of the New York State Constitution.

53. A damages remedy here is necessary to effectuate the purposes of Article I, §§ 6, 8, 9, 11, and 12 of the New York State Constitution, and appropriate to ensure full realizations of Plaintiff's rights under those sections.

54. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of their federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

55. Defendants' unlawful conduct was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

Intentional and Negligent Infliction of Emotional Distress

56. By the actions described above, Defendants engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to Plaintiff.

57. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to the Plaintiff and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

58. As a result of the foregoing, Plaintiff was deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

Negligent Training and Supervision

59. Upon information and belief, Defendant City supervised and trained the police officials described above.

60. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

DEMAND FOR A JURY TRIAL

Plaintiff hereby demands a jury trial of all issues capable of being determined by a jury.

DEMAND FOR JUDGMENT

WHEREFORE, Plaintiff demands judgment against the individual Defendants and the City of New York as follows:

- i. Actual and punitive damages against the individual Defendants in an amount to be determined at trial;
- ii. Actual damages in an amount to be determined at trial against the City of New York;

Dated: Brooklyn, New York
December 2, 2022

COHEN&GREEN P.L.L.C.

By: /s/
J. Remy Green
Elena L. Cohen
Jessica Massimi

Cohen&Green P.L.L.C.
1639 Centre Street, Suite 216
Ridgewood (Queens), NY 11385
t: (929) 888-9480
f: (929) 888-9457
e: elena@femmelaw.com
remy@femmelaw.com
jessica@femmelaw.com

ATTORNEY'S VERIFICATION

I, REMY GREEN, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

1. I am the attorney of record for the Plaintiffs.
2. I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
3. I make this verification because Plaintiffs do not reside in the County (Queens) where I maintain my offices.

Dated: Ridgewood (Queens), New York
December 2, 2022

/s/

J. Remy Green
1639 Centre Street, Suite 216
Ridgewood (Queens), NY 11385
t: (929) 888-9480
f: (929) 888-9457
e: remy@femmelaw.com